

Board of County Commissioners

Minutes of the Proceedings - Final

Historic Courthouse
310 W 19th Street
Cheyenne, WY 82001



Tuesday, December 3, 2024

3:30 PM

Commissioners Board Room

Roll Call/Call to Order

Present: Commissioner Linda Heath, Commissioner K. N. Buck Holmes, Commissioner Troy Thompson
Excused: Chairman Brian Lovett, Vice Chairman Gunnar Malm

Minutes

1. Consideration of the Minutes of Proceedings for Nov 19, 2024.

[24 - 556](#)

Attachments: [Draft Minutes Nov 19, 2024](#)

A motion was made by Commissioner Holmes, seconded by Commissioner Heath, that this agenda item be approved. The motion carried by the following vote:

Aye: Heath, Holmes, Thompson

Excused: Lovett, Malm

Consent Agenda

Approval of the Consent Agenda

A motion was made by Commissioner Heath, seconded by Commissioner Holmes, to approve the Consent Agenda. The motion carried by the following vote:

Aye: Heath, Holmes, Thompson

Excused: Lovett, Malm

2. Consideration of the ratification of an agreement between Laramie County, WY, Union Pacific Railroad Co and the WY Dept of Transportation to permanently close and remove the existing Pershing Blvd grade-separated public road crossing (DOT No. 817689U) described in exhibit A.

[24 - 554](#)

Attachments: [Agreement, UPRR and WY Dept of Transportation](#)

This agenda item was approved.

3. Consideration of an agreement between Laramie County, WY, and Bridget Parish to grant a license to occupy 3901 Archer Pkwy as a

[24 - 561](#)

caretaker of the property. It is part of the caretaker's job description and requirement that the caretaker/employee lives on the premises of the Archer property to perform job functions.

Attachments: [Agreement, Bridget Parish](#)

This agenda item was approved.

4. Consideration of a grant award agreement between WY Office of Homeland Security and Laramie County, WY, for a FY24 Emergency Management Performance Grant in the amount of \$107,934 with a 50% match to run through Sept 30, 2025 to provide funding to Emergency Management to support implementation of the National Preparedness System and the National Preparedness goal. [24 - 562](#)

Attachments: [FY24 EMPG Grant Award, EMA](#)

This agenda item was approved.

5. Consideration of an ARPA nonprofit subaward contract between Laramie County, WY, and United Way of Laramie County for a US Dept of the Treasury Coronavirus State and Local Fiscal Recovery Fund in the amount of \$50,000 to run through Dec 31, 2025. [24 - 572](#)

Attachments: [Agreements, ARPA Nonprofit, United Way of Laramie County](#)

This agenda item was approved.

6. Consideration of the following fees collected by various county entities for Oct 2024: County Clerk, \$124,749.48; Sheriff, \$192,856.42; Clerk of District Court, \$19,982.00; Shooting Sports, \$19,877.90; Planning & Development, \$208,032.75; Circuit Court, \$65,003.00; DUI Court, \$510.00; Drug Court, \$340.00. [24 - 555](#)

Attachments: [Oct Fees 2024](#)

This agenda item was approved.

7. Consideration of the following part-time salaries in the amount of \$78,483.06 for Nov 2024: Planning, \$1,322.54; Shooting Sports, \$9,578.63; Buildings/Maintenance, \$26,445.15; Sheriff Operations, \$7,084.38; Detention, \$27,984.60; District Court, \$777.08; Drug/DUI Courts, \$5,290.68. [24 - 557](#)

Attachments: [Nov Part-time Salaries 2024](#)

This agenda item was approved.

Warrants

8. Consideration of warrants in the amount of \$5,620,866.03 for Nov 2024. [24 - 558](#)

Attachments: [Nov Warrants 2024](#)

A motion was made by Commissioner Holmes, seconded by Commissioner Heath, that this agenda item be approved. The motion carried by the following vote:

Aye: Heath, Holmes, Thompson

Excused: Lovett, Malm

Resolutions

9. Consideration of a resolution giving public notice of solicitation of nominations for directors of the Laramie County Weed and Pest Control Dist for Areas 3, 5, and 7 for four-year terms. [24 - 559](#)

Attachments: [Resolution, Public Notice, Weed and Pest Control Dist Appointments](#)

A motion was made by Commissioner Holmes, seconded by Commissioner Heath, that this agenda item be approved. The motion carried by the following vote:

Aye: Heath, Holmes, Thompson

Excused: Lovett, Malm

Grants

10. Consideration of the first amendment to the gambling prevention subgrantee agreement (240206-19) between Laramie County, WY, and Cheyenne Regional Medical Center to extend the term to Nov 30, 2026. [24 - 573](#)

Attachments: [First Amendment, CRMC, Gambling Prevention Funds](#)

A motion was made by Commissioner Holmes, seconded by Commissioner Heath, that this agenda item be approved. The motion carried by the following vote:

Aye: Heath, Holmes, Thompson

Excused: Lovett, Malm

Contract/Agreement/Leases

- 11.** Consideration of the ratification of an agreement between Laramie County, WY, and Cheyenne Regional Air Service Focus Team (CRAFT) in c/o LEADS. The purpose of the agreement is for the county to pay a portion of the Minimum Revenue Guaranteed funds to CRAFT for payments to SkyWest Airlines to provide scheduled flight service between Cheyenne and Denver. The county shall pay CRAFT up to \$400,000 for FY25. The FY25 agreement shall terminate automatically at the exhaustion of the \$400,000 or June 30, 2025, the end of the 2025 fiscal year, whichever is earlier.

[24 - 563](#)

Attachments: [Agreement, CRAFT, FY25 MRG](#)

A motion was made by Commissioner Heath, seconded by Commissioner Holmes, that this agenda item be approved. The motion carried by the following vote:

Aye: Heath, Holmes, Thompson

Excused: Lovett, Malm

Appointments

- 12.** Consideration of a resolution appointing a member to the Laramie County Adult Community Corrections Board for a four-year term, expiring Dec 31, 2028.

[24 - 560](#)

Attachments: [Adult Community Corrections Board Appointment, Robin Cooley](#)

A motion was made by Commissioner Heath, seconded by Commissioner Holmes, to appoint Judge Robin Cooley. The motion carried by the following vote:

Aye: Heath, Holmes, Thompson

Excused: Lovett, Malm

Items #12, #13 and #14 were consolidated into one motion.

- 13.** Consideration of a resolution appointing a member to the Laramie County Recreation Planning and Advisory Board to a five-year term, expiring Dec 31, 2029.

[24 - 566](#)

Attachments: [Recreation Planning and Advisory Board Appointment, Bruce Heimbuck](#)

A motion was made by Commissioner Thompson, seconded by Commissioner Holmes, to reappoint Bruce Heimbuck. The motion carried

by the following vote:

Aye: Heath, Holmes, Thompson

Excused: Lovett, Malm

14. [24 - 567](#)

Consideration of a resolution appointing a member to the Laramie County Recreation Planning and Advisory Board to a five-year term expiring Dec 31, 2029.

Attachments: [Recreation Planning and Advisory Board Appointment, Sonja Fornstrom](#)

A motion was made by Commissioner Thompson, seconded by Commissioner Holmes, to reappoint Sonja Fornstrom. The motion carried by the following vote:

Aye: Heath, Holmes, Thompson

Excused: Lovett, Malm

15. [24 - 568](#)

Consideration of a resolution appointing a member to the Laramie County Recreation Planning and Advisory Board to a five-year term, expiring Dec 31, 2029.

Attachments: [Recreation Planning and Advisory Board Appointment, Jon Moore](#)

A motion was made by Commissioner Thompson, seconded by Commissioner Holmes, reappoint Jon Moore. The motion carried by the following vote:

Aye: Heath, Holmes, Thompson

Excused: Lovett, Malm

16. [24 - 569](#)

Consideration of a resolution appointing a member to the Cheyenne-Laramie County Board of Health to a five-year term, expiring Dec 31, 2029.

Attachments: [Health Board Appointment, Sue Hume](#)

A motion was made by Commissioner Thompson, seconded by Commissioner Holmes, to reappoint Sue Hume. The motion carried by the following vote:

Aye: Heath, Holmes, Thompson

Excused: Lovett, Malm

Land Use:Variances/Board App./Plats

17. Presentation by AirLoom Energy on their Low-Cost Turbine Technology Pilot Project. (No action required)

[24 - 564](#)

Attachments: [Presentation, Airloom Energy](#)

Neal Rickner and Heidi Larson, Airloom Energy, explained the project and gave a presentation. They explained this is an R&D project and a temporary project to test the physics to prove that the technology works for next-generation wind turbines.

The presentation was received and filed.

18. PUBLIC HEARING regarding a subdivision permit and plat for Maverick Corner, 2nd Filing, located in a portion of Sect 28, T15N, R67W of the 6th PM, Laramie County, WY.

[24 - 565](#)

Attachments: [Maverick Corner, 2nd Filing, Subdivision Permit and Plat](#)

Justin Arnold, Planning, said Jones Land Surveying, Inc, on behalf of Chase Leshner, submitted a subdivision permit and plat application for Maverick Corner, 2nd Filing, located west of 4922 Klipstein Rd. He said the purpose of the application is to divide 28.18 gross acre parcel into three residential tracts.

Arnold said based on evidence provided, staff recommends approval of the subdivision permit and plat with the adoption of findings of fact a and b with no conditions.

Acting Chairman Thompson opened the hearing for PUBLIC COMMENT. Hearing no PUBLIC COMMENT, Acting Chairman Thompson closed the hearing.

A motion was made by Commissioner Holmes, seconded by Commissioner Heath, to approve the subdivision permit and plat for Maverick Corner, 2nd Filing, located in a portion of Sect 28, T15N, R67W of the 6th PM, Laramie County, WY, with no conditions, and adopt the findings of fact a and b of the staff report.

Commissioner Holmes suggested placing a plat note for no further development on the remaining 17-acre parcel to ensure compliance with county standards. Acting Chairman Thompson pointed out that gross acreage of both of the other two tracts is 5.25.

Commissioner Holmes declined to offer an amendment.

The motion carried by the following vote:

Aye: Heath, Holmes, Thompson

Excused: Lovett, Malm

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19. PUBLIC HEARING regarding a zone change from A1 - Agricultural & Rural Residential to CB - Community Business for Tract 1, Murray Hill Estates, 7th Filing, Laramie County, WY.

[24 - 570](#)

Attachments: [Murray Development, LLC, Zone Change](#)

Justin Arnold, Planning, said AVI PC, on behalf of Murray Development, LLC, submitted a zone change application for property in the Murray Hill Estates Subdivision, 7th Filing, located generally on the southwest side of the I-25 interchange at Horse Creek Rd. The application asks to rezone the property from A1 - Agricultural and Rural Residential to CB - Community Business. Arnold said the proposed rezoning will prepare the parcel for commercial development to align with the County's Comprehensive Plan.

Arnold said based on evidence provided, staff recommends approval of the zone change with the adoption of findings of fact a and b with no conditions.

Acting Chairman Thompson opened the hearing for PUBLIC COMMENT. Jessica Parker, resident, expressed concerns about the aquifer. Hearing no further PUBLIC COMMENT, Acting Chairman Thompson closed the hearing.

Acting Chairman Thompson spoke about Parker's concerns. He said if there is a business, a site plan will be needed. He said the site plan would describe the type of building, landscaping and source of water.

A motion was made by Commissioner Holmes, seconded by Commissioner Heath, to approve a zone change from A1 to CB for Tract 1, Murray Hill Estates, 7th Filing, Laramie County, WY, and to adopt the findings of fact a and b of the staff report.

Commissioner Heath said that when the county did the last area planning map, it was discussed that all the interchanges along interstates would be prime for commercial development. Commissioner Holmes spoke about the other side of the interstate, where hours of operation were limited. Commissioner Holmes thanked the developer for getting the designation on the map so that people who move into the area would know that it is zoned for commercial enterprise.

The motion carried by the following vote:

Aye: Heath, Holmes, Thompson

Excused: Lovett, Malm

20. PUBLIC HEARING regarding a vacation and administrative plat for Archer Estates, 11th Filing, located on the North 1/2 of Tract 9, Archer Estates, 3rd Filing, Laramie County, WY.

[24 - 571](#)

Attachments: [Triple Dot Capital Investments, LLC, Board Approval Vacation and Administrative Plat, Archer Estates, 11th Filing](#)

Justin Arnold, Planning, said Steil Surveying Services, LLC, on behalf of Triple Dot Capital Investments, LLC, submitted an administrative plat application for Archer Estates, 11th Filing, situated in a portion of the NE1/4 of the SE1/4 of Sect 16, T14N, R65W, 6th PM, Laramie County, WY. He said the property lies at 12611 Glencoe Dr, and the purpose of the application is to divide the 10.77 gross acre tract into two residential tracts. Arnold said Tract 1 will include the existing residence.

Arnold said based on evidence provided, staff recommends approval of the administrative plat with the adoption of findings of fact a and b with no conditions.

Acting Chairman Thompson opened the hearing for PUBLIC COMMENT. Jessica Parker, Ann Smith, Richard Wright, residents, expressed concerns about water, lot sizes, openness, and peace and quiet of country life. Hearing no further PUBLIC COMMENT, Acting Chairman Thompson closed the hearing.

A motion was made by Commissioner Holmes, seconded by Commissioner Heath, to approve the administrative plat for Archer Estates, 11th Filing, located in a portion of the NE1/4 of the SE1/4 of Sect 16, T14N, R65W, of the 6th PM, Laramie County, WY, with no conditions and adopt the findings of fact a and b of the staff report.

Commissioner Holmes said he is philosophically opposed to going into established subdivisions with tracts larger than nine acres and splitting them. He expressed opposition to further subdividing to add another house.

Commissioner Heath said she understands concerns with water and changes in lot sizes.

Acting Chairman Thompson addressed the public comments. He said he went to the State Engineer's office to get some scientific basis for determining the minimum lot sizes for the recharge of the aquifer. He described the process resulting in the AMEC memo that provided a modeling formula for Laramie County establishing minimum lot sizes in four different zones based on recharge rates.

Commissioner Holmes said many lots in the area do not meet the 5.25 minimum acreage standard. He said the overall water usage and the recharge rate in the densely populated area make it scientifically possible to argue that lot sizes in the area should be larger than 5.25 acres. Commissioner Holmes felt it was poor policy to meet the bare minimum requirements for a subdivision or tract.

Commissioner Heath spoke about the need to incorporate recent data from the city of Cheyenne and get an updated AMEC memo because more water is being drawn

from the aquifer.

Acting Chairman Thompson reopened the meeting for public comment. Shane Hansen, Steil Surveying Services, LLC and applicant's agent, pointed out that the county creates the guidelines, and the applicant has exceeded the minimum requirements. Hansen said he expected the board to follow its own guidelines.

Acting Chairman Thompson said the AMEC memo provides the scientific formula that has been the county's policy for the past 10 years. He recommended residents review the AMEC memo. Acting Chairman Thompson reclosed the public hearing.

Commissioner Holmes recommended postponing the hearing until there is a full commission. Acting Chairman Thompson noted that an open motion is currently on the table.

A motion was made by Commissioner Holmes, seconded by Commissioner Heath, to postpone the hearing until Dec 17, 2024.

Acting Chairman Thompson asked Hansen to comment on the proposed postponement. Hansen repeated that the applicant exceeds county guidelines. He said if the application is voted down, a lawsuit may be filed against the county for going against its own policy. Hansen added he would take on the responsibility of allowing his client to accept the postponement until the entire board is present.

The motion carried by the following vote:

Aye: Holmes, Thompson

Nay: Heath

Excused: Lovett, Malm

The meeting adjourned at 4:59 pm.

CERTIFICATION

I, Debra K. Lee, Clerk of Laramie County, do hereby certify the above to be a true and correct copy of the Minutes of the Proceedings for Tuesday, Dec 3, 2024.

Approved by : Debra K. Lee, County Clerk

Reviewed by : Brian Lovett, Chairman,
Board of County Commissioners

Reasonable Accommodations

This information is available in alternate forms. If reasonable accommodations are required, contact Laramie County Human Resources at (307) 633-4355 or humanresources@laramiecountywy.gov at least two business days prior to the meeting. Per WS §18-3-516(f), access to county information can be obtained at laramiecountywy.gov.